

Notary Public Act, 2006

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NOTARY PUBLIC ACT, 2063 (2006)

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Amending Acts

1. Some Nepal Acts Amendment Act, 2064 (2007) 2064.5.9 (August 25, 2007)
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.7 (January 21, 2010)
3. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13 (February 25, 2016)
4. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018) 2075.11.19 (March 3, 2019)

Act Number 9 of the year 2063 (2006)

An Act Made to Make Provisions Relating to Notary Public

Preamble: Whereas, it is expedient to make legal provisions relating to Notary Public to ascertain the actual person signing a deed at the time of making the deed, to control forgery and counterfeiting activities, to arrange for translation of documents in a simple and accessible manner, and to safeguard the interests of the general public;

Now, therefore, the House of Representatives has enacted this Act in the first year of the issuance of the Proclamation of the House of Representatives, 2063 (2006). Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Notary Public Act, 2063 (2006)."

As per the notice published in the Nepal Gazette dated 2063.11.1 (February 13, 2007), the said Act came into force from Falgun 1, 2063 (February 13, 2007). (2) This Act shall commence on the date appointed by the Government of Nepal by a notice published in the Nepal Gazette. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Notary Public" means a person who has obtained a certificate of Notary Public pursuant to Section 14. (b) "Council" means the Nepal Notary Public Council established pursuant to Section 3. (c) "Chairperson" means the Chairperson of the Council. (d) "Member" means a member of the Council, and this term shall also include the Chairperson. (e) "Secretary" means a person appointed or deputed pursuant to Section 7. (f) "Certificate" means the certificate given pursuant to Section 14 to work as a Notary Public. (g) "Deed" means any deed made between two or more persons to create, transfer, amend, or extend any kind of right or liability, and this term shall also include a prescribed deed for use abroad or an affidavit or other documents or deeds of a similar nature submitted to a court or office. (h) "Document" means papers issued by a government or public office or a private institution, and this term shall also include a deed. (i) "Certification" means the act of certifying a deed by a Notary Public

pursuant to Section 27. (j) "Representative" means the following persons:- (1) A person authorized by a power of attorney under the prevailing law to get a deed certified, or (2) A person authorized to sign a deed on behalf of a firm, company, or organized institution established under the prevailing law. (k) "Legal Practitioner" means a person registered as a legal practitioner under the prevailing law. (l) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2 Provisions Relating to Establishment, Functions, Duties and Powers of the Council

3. Establishment of the Council: (1) A council named the Nepal Notary Public Council is hereby established to make arrangements for the certification of deeds and translation of documents in a simple and accessible manner. (2) The office of the Council shall be located in the Kathmandu Valley. **4. Council to be a Corporate Body:** (1) The Council shall be a self-governing and corporate body with perpetual succession. (2) The Council shall have a separate seal for its activities. (3) The Council may, like a person, acquire, possess, or sell movable and immovable property. (4) The Council may, like a person, sue and be sued in its own name. **5.**

Constitution of the Council: (1) The Council shall be constituted as follows:- (a) Attorney General ? Chairperson (b) President, Nepal Bar Association ? Member (c) Secretary, Ministry of Law, Justice and Parliamentary Affairs ? Member (d) Secretary (Law), Office of the Prime Minister and Council of Ministers ? Member Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). (e) Secretary, Nepal Law Commission ? Member Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018). (f) Secretary, Ministry of Land Management, Cooperatives and Poverty Alleviation ? Member (g) Secretary, Ministry of Foreign Affairs ? Member (h) Registrar, Supreme Court ? Member (2) The Secretary pursuant to Section 7 shall act as the Secretary of the Council. (3) The procedures relating to the meeting of the Council shall be as prescribed. **6. Functions, Duties and Powers of the Council:** In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Council shall be as follows:- (a) To formulate and implement policies to be adopted regarding Notary Public, (b) To issue Notary Public Certificates, (c) To monitor whether the Notary Public works according to this Act or the code of conduct made by the Council, (d) To form committees as needed concerning its work and specify the functions, duties and powers of such committees, (e) To appoint an auditor, and (f) To perform other functions as prescribed. **7. Secretary:** (1) There shall be a Secretary to act as the administrative chief of the Council. (2) The Council shall appoint a person who has at least a bachelor's degree in law to the post of Secretary as prescribed. (3) Until a Secretary is appointed pursuant to Sub-section (2), the Government of Nepal may, upon the request of the Council, depute a gazetted second class officer of the Judicial Service to work as the Secretary of the Council on deputation. (4) The term of office of the Secretary shall be four years. (5) Notwithstanding anything contained in Sub-section (4), the Council may remove the Secretary from the post of Secretary at any time if he/she does not work honestly, or is found to have bad conduct, or if his/her work is unsatisfactory. (6) Before removing the Secretary pursuant to Sub-section (5), an opportunity to present his/her defense must be given to him/her. (7) The functions, duties, powers, remuneration, and other terms of service of the Secretary shall be as prescribed. **8.**

Employees of the Council: (1) The Council shall have the necessary number of employees. (2) The appointment, terms of service, remuneration, and facilities of the employees of the Council shall be as prescribed. **9. Fund of the Council:** (1) The Council shall have a separate fund. (2) The fund pursuant to Sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from any person or organization, (c) Amount received as fees from persons taking certificates, (d) Amount received as security deposit, and (e) Amount received from other sources. (3) All expenditures of the Council shall be borne from the fund pursuant to Sub-section (1). Provided that the

amount pursuant to Clause (d) of that sub-section shall not be spent on the work of the Council. (4) The operation of the Council's Fund shall be as prescribed. (5) The audit of the Council shall be as prescribed.

Chapter-3 Provisions Relating to Certificate of Notary Public

10. Not to Work as Notary Public Without a Certificate: No person shall work as a Notary Public without obtaining a certificate under this Act.

11. Must Pass Examination: (1) A person wishing to obtain a certificate to perform translation work or other specific work specified by the Council among the works of a Notary Public must have passed the examination relating to Notary Public. (2) The Council may itself conduct the examination pursuant to Sub-section (1) or make arrangements for an institution providing training on justice or law or conducting examinations for legal practitioners to conduct it. (3) The curriculum, type of examination, and other arrangements relating to the examination pursuant to Sub-section (1) shall be as prescribed.

12. Qualification for Notary Public: The following person shall be qualified to become a Notary Public:- (a) A legal practitioner who has continuously practiced law for seven years, or (b) A person who has separated from service after serving in at least a gazetted second class post in the Nepal Judicial Service.

13. Disqualification for Notary Public: The following person shall be disqualified for becoming a Notary Public:- (a) One who has not passed the examination pursuant to Section 11, (b) One who does not have the qualification pursuant to Section 12, (c) One who has been convicted and sentenced by a court for serious offenses like homicide, theft, robbery, counterfeiting, forgery, corruption, rape, trafficking and consumption of narcotic drugs, human trafficking, or other offenses of a similar nature, (d) One who is not of good character, (e) A non-Nepali citizen, (f) An undischarged insolvent, and (g) One who is of unsound mind.

14.

Provisions Relating to Certificate: (1) A person wishing to obtain a certificate of Notary Public shall submit an application to the Council in the format as prescribed, together with the prescribed fee for the certificate. (2) Upon receipt of an application pursuant to Sub-section (1), the Council shall form a committee as prescribed to examine the application and make recommendations. (3) If the committee pursuant to Sub-section (2) recommends granting the certificate to the applicant, and upon examination of such recommendation, if it appears reasonable, the Council shall, after taking a security deposit from the applicant pursuant to Section 17, issue the certificate in the prescribed format. (4) The place where the Notary Public may work shall be as mentioned in the certificate.

15. Must Send Details Relating to Notary Public: (1) After issuing a certificate pursuant to Section 14, the Council shall send the name, surname, address, and other necessary details of the Notary Public to the Bar Association of the district and the District Court in the locality where he/she is to work as a Notary Public. (2) Upon receipt of the details pursuant to Sub-section (1), the concerned Bar Association and District Court shall display such details in a place visible to all.

16. Validity Period and Renewal of Certificate: (1) The validity period of a certificate issued pursuant to Section 14 shall be five years. (2) A person wishing to renew the certificate shall submit an application to the Council sixty days before the expiry of the validity period of the certificate, together with the prescribed fee. (3) Upon receipt of an application pursuant to Sub-section (2), the Council may, after making necessary inquiries, renew the certificate. (4) Other provisions relating to the renewal of the certificate shall be as prescribed.

17. Must Deposit Security: (1) A person taking a certificate shall deposit with the Council a security amounting to fifty thousand rupees in cash or a bank guarantee of equivalent amount from a bank specified by the Council. (2) The security deposit pursuant to Sub-section (1) shall be used for the prescribed work that the Notary Public must bear while working in that capacity. (3) If the amount of security deposited with the Council by the Notary Public decreases after being used for work pursuant to Sub-section (2), the decreased amount or an equivalent bank guarantee must be deposited with the Council within thirty days. (4) Other provisions relating to security shall be as prescribed.

18.

Certificate to be Cancelled: (1) The certificate of a Notary Public shall be cancelled in the following

circumstances:- (a) If he/she is convicted and sentenced by a court for the offenses mentioned in Clauses (c) and (d) of Section 13, (b) Upon his/her death, (c) If he/she becomes of unsound mind, (d) If he/she fails to get the certificate renewed, (e) If his/her legal practitioner's certificate is cancelled or his/her name is removed from the register of legal practitioners, or (f) If he/she voluntarily submits an application to the Council for the cancellation of the certificate. (2) If a Notary Public commits professional misconduct or does any other act contrary to this Act or the rules made under this Act, the Council may cancel the certificate obtained by him/her. (3) Before cancelling the certificate pursuant to Sub-section (2), the Council shall give the concerned Notary Public a time limit of fifteen days to submit an explanation. (4) If a certificate is cancelled pursuant to this Section, the Council shall immediately inform the concerned District Court and Bar Association thereof.

Chapter-4 Provisions Relating to Functions and Duties of Notary Public

19. Functions that a Notary Public may Perform: Subject to this Act, a Notary Public may perform the following functions:- (a) To certify any deed, (b) To translate a document written in one language into another language, and (c) To certify a copy of any original document. 20.

Functions that a Notary Public must not Perform: A Notary Public must not perform the following functions:- (a) To certify a deed not registered in the register book of his/her office, (b) To certify that a deed is an original, (c) To certify a deed made by himself/herself, (d) To certify a deed related to his/her own interest or transaction, (e) To certify a deed of his/her near relative, Explanation: For the purpose of this clause, "near relative" shall mean relatives as prescribed. (f) To disclose information obtained while certifying a deed without the consent of the person getting the deed certified, except as required by law, (g) To alter, amend, or add to or subtract from deeds or documents kept safely with him/her, (h) To certify a deed without following the procedure pursuant to Section 27, (i) To certify any deed unauthorizedly or negligently, (j) To charge fees higher than that which may be charged for certifying a deed or translation, (k) To translate suspicious documents, (l) To translate by altering the date, figure, or content mentioned in a document, (m) To work as a Notary Public outside his/her jurisdiction, (n) To certify any deed without the person making the deed appearing before him/her, (o) To act contrary to the code of conduct, (p) To do any other act contrary to this Act or the rules made under this Act, And (q) To perform other acts as prescribed. 21.

Must Take Oath: A Notary Public must take an oath as prescribed before starting the work as a Notary Public. 22.

Must Open Office: (1) A Notary Public must open his/her office in the place where he/she is to work. (2) An office pursuant to Sub-section (1) shall not be opened in more than one place. (3) The Notary Public must display a signboard outside the office with his/her name and certificate number, visible to all, and must keep the certificate inside the office. 23.

Must Maintain Register Book: (1) A Notary Public must maintain separate register books for keeping records of works related to deed certification and translation. (2) The particulars to be mentioned in the register book pursuant to Sub-section (1) shall be as prescribed. (3) Of the register books pursuant to Sub-section (1), the Notary Public must keep the register book relating to deed certification safe for five years from the date of completion of the last page of such register book. 24.

Must Maintain File: (1) A Notary Public must maintain a separate file in his/her office for safely keeping the deeds certified or documents translated by him/her. (2) In the file pursuant to Sub-section (1), a copy of the certified deed or translated document shall be kept, mentioning the name, surname, and address of the person getting the deed certified or document translated. (3) If the Notary Public stops doing such work, he/she must submit the file kept pursuant to Sub-section (1) to the Council as prescribed; and upon his/her death or if he/she becomes of unsound mind, his/her nearest heir must submit it accordingly. 25.

Must Submit Report: (1) The Notary Public must prepare an annual report of his/her activities and submit it to the concerned District Court and the Council by the end of the Nepali month of Baisakh (mid-April) each year. (2) A Notary Public certifying deeds related to the transfer of immovable

property rights must send the details of his/her activities to the concerned Land Revenue Office every month. (3) The particulars to be mentioned in the report pursuant to Sub-section (1) shall be as prescribed. 26. Deemed to have Committed Professional Misconduct: If a Notary Public performs any act pursuant to Section 20, Amended by the Some Nepal Acts Amendment Act, 2064 (2007). it shall be deemed to have committed professional misconduct. Chapter-5 Provisions Relating to Deed Certification and Document Translation 27. Procedures Relating to Deed Certification: (1) A person wishing to get a deed certified shall submit an application to the Notary Public as prescribed for certifying the deed. (2) While submitting an application pursuant to Sub-section (1), the applicant must present two witnesses known to him/her before the Notary Public.

While presenting such witnesses, documents revealing the identity of the witnesses must also be submitted. (3) Upon receipt of an application pursuant to Sub-section (1), the Notary Public must ascertain whether the person signing the deed is the actual person. (4) Regarding the ascertainment of the person pursuant to Sub-section (3), the Notary Public may request additional documents from the applicant, make necessary inquiries with the applicant and the witnesses presented by him/her, or obtain a written statement from him/her on the matter. (5) If the Notary Public is to certify a deed to be submitted to a court or office, he/she may administer an oath to the applicant as prescribed. (6) If the Notary Public personally knows the applicant, or if the applicant is ascertained to be the actual person based on the documents requested pursuant to Sub-section (4) or inquiries made with the witnesses presented by the applicant, the Notary Public may certify the deed as prescribed by having the applicant sign and put his/her thumbprint on the deed submitted, or in the case of an applicant unable to sign, by having him/her affix a thumbprint. (7) Other provisions relating to deed certification shall be as prescribed. 28. Procedures Relating to Document Translation: (1) A person wishing to get a document translated shall submit an application to the Notary Public as prescribed for the translation of the document. (2) Upon receipt of an application pursuant to Sub-section (1), the Notary Public must ascertain whether such document is authentic. (3) If there is doubt regarding the authenticity of a document, the Notary Public may conduct necessary inquiries or examination of such document or inquire about it with the office or institution that issued such document. (4) If such document appears authentic from the inquiries pursuant to Sub-section (3) etc., the Notary Public must translate such document and certify such document as prescribed. (5) Other provisions relating to document translation shall be as prescribed. 29. Procedure for Certifying Copy: The procedure to be followed by the Notary Public while certifying a copy of an original document shall be as prescribed. 30. Fees that a Notary Public may Charge: The fees that a Notary Public may charge for certifying a deed or translating a document shall be as prescribed. Chapter-6 Provisions Relating to Inspection, Investigation and Suspension 31.

May Conduct Inspection and Monitoring: (1) The Council may inspect or monitor the activities of a Notary Public or may request documents, information, or explanations from the Notary Public concerning such activities. (2) The concerned Notary Public must provide the documents, information, or explanation requested by the Council pursuant to Sub-section (1) to the Council in time. 32. Complaint, Investigation and Suspension: (1) If a Notary Public commits professional misconduct, a person knowing about such act may file a complaint with the Council within two years from the date of such act. (2) If a complaint is filed pursuant to Sub-section (1), or if, during inspection or monitoring pursuant to Section 31 or from any other source, information comes to light that a Notary Public has committed professional misconduct, the Council may fix a time limit and request information or explanations from the concerned Notary Public in this regard, or may have him/her appear before it and make a statement. (3) If, from the information or explanation requested or the statement obtained pursuant to Sub-section (2), it appears necessary to suspend the Notary Public, the Council may suspend such Notary Public. (4) The period of suspension pursuant to Sub-section (3) shall not

exceed two months, and the Council must conclude the work related to the complaint within that period. (5) Other provisions relating to the investigation of complaints shall be as prescribed. Chapter-7 Provisions Relating to Punishment and Compensation 33.

Punishment: (1) If a person works as a Notary Public without obtaining a certificate under this Act, such person shall be liable to imprisonment for a term up to three years or a fine up to one hundred fifty thousand rupees or both. (2) If a Notary Public commits professional misconduct, depending on the nature of the offense, he/she shall be liable to imprisonment for a term up to four years or a fine up to two hundred thousand rupees or both. (3) If the content written in a certified deed by a person making the deed is proven false, such person shall be liable to imprisonment for a term up to four years or a fine up to two hundred thousand rupees or both. (4) If the oath taken by a person pursuant to Sub-section (5) of Section 27 is proven false, such person shall be liable to imprisonment for a term up to three months or a fine up to fifteen thousand rupees or both. (5) If a person acting as a witness for certifying a deed identifies a wrong person, or gives false details or statements, or makes a false document, he/she shall be liable to imprisonment for a term up to six months or a fine up to twenty-five thousand rupees or both. (6) If a person gets a deed certified by committing forgery or counterfeiting or by deception in collusion with a Notary Public, such person shall be liable to imprisonment for a term up to one year or a fine up to fifty thousand rupees or both. (7) If a person translates or causes to be translated a document by altering the date, figure, or content written in the document to be translated, such person shall be liable to imprisonment for a term up to three months or a fine up to fifteen thousand rupees or both. (8) If a person does any act contrary to this Act or the rules made under this Act, other than those mentioned in this Section, he/she shall be liable to imprisonment for a term up to three months or a fine up to fifteen thousand rupees or both. 34.

May Claim Compensation: (1) If any person suffers loss or damage due to a Notary Public's professional misconduct, the aggrieved person may file a case in the concerned District Court within two years from the date of such professional misconduct and recover compensation from him/her. (2) Notwithstanding anything contained in Sub-section (1), for professional misconduct committed by a Notary Public under the following circumstances, the person signing the deed or his/her representative shall be equally liable for such loss or damage:- (a) The professional misconduct occurred while working for the person signing the deed, and (b) Despite knowing that the Notary Public was about to commit professional misconduct, he/she consented to such act. Chapter-8 Miscellaneous 35. Deemed as a Position of Public Accountability: The Notary Public shall be deemed as a position of public accountability. 36. Seal of Notary Public and its Use: (1) The seal of a Notary Public shall be as prescribed. (2) The seal pursuant to Sub-section (1) must not be used by the Notary Public for purposes other than Notary Public work. 37. To Formulate and Implement Code of Conduct: The Council shall formulate and implement a code of conduct to be followed by Notary Publics. 38. Must Maintain Record of Notary Public: The Council must maintain a record of Notary Publics as prescribed. 39. Special Provisions Relating to Translation: (1) Notwithstanding anything contained elsewhere in this Act, an institution established under the prevailing law at the time of commencement of this Act and authorized to translate documents may, after obtaining approval from the Council, translate documents. (2) An institution obtaining approval pursuant to Sub-section (1) must complete the process pursuant to Section 28 while translating documents. (3) If an institution obtaining approval pursuant to Sub-section (1) translates documents contrary to this Act, the chief of such institution shall be liable to the punishment pursuant to Section 33. 40. Not to Bar Prosecution Under Prevailing Law: If any act done contrary to this Act by a Notary Public, or a person getting a deed certified or getting a document translated, is also punishable under other laws, nothing in this Act shall be deemed to bar the prosecution of such person under such other laws. 41. Delegation of Powers: The Council may, as necessary, delegate some of the powers conferred to it by this Act or the rules made under

this Act to the Chairperson, a Member, the Secretary, or any official employee of the Council. 42.

Government of Nepal to be Plaintiff: (1) The Government of Nepal shall be the plaintiff in cases under this Act. (2) Cases under this Act shall be deemed to fall under Words transformed by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 (2018): Instead of the words "Schedule-1 of the Government Cases Act, 2049", the words "Schedule-1 of the National Criminal Procedure Code, 2074".Schedule-1 of the National Criminal Procedure Code, 2074 (2017). 43. Contact with the Government of Nepal: The Council shall maintain contact with the Government of Nepal through the Words transformed by the Some Nepal Acts Amendment Act, 2072 (2015): Instead of "Ministry of Law, Justice and Parliamentary Affairs", "Ministry of Law, Justice, Constituent Assembly and Parliamentary Affairs" or "Ministry of Law, Justice and Constituent Assembly Affairs", the words "Ministry of Law, Justice and Constituent Assembly Affairs".Ministry of Law, Justice and Constituent Assembly Affairs. 44. Power to Make Rules: The Council may make necessary rules to implement the objectives of this Act.